REQUEST FOR QUOTATION

US Army Corps
of Engineers
Lake Red Rock
Refuse/Recycling Services
26QA006

PLEASE RETURN TO:
US Army Corps of Engineers
Attn: Eric Gaul
1500 Rock Island Drive
Rock Island, Illinois 61201
Email: eric.j.gaul@usace.army.mil

PLEASE INCLUDE THE FOLLOWING INFORMATION:

1. **Complete Block 17a on the SF1449 - Enter Name, Address, and Current Phone Number of Person to Contact Regarding Proposal.**

2. **Complete and sign Blocks 30a, 30b, and 30c on the SF1449.**

3. **Complete Section B (Services Price) for each year in the Solicitation in its entirety.**

4. **Please fill out the information below completely and include this cover page with your offer, along with the above items that need to be filled out.**

5. **Include the Solicitation Number on the subject line of your emailed quote.**

Contractors must be current in their registration in the System for Award Management (SAM) Database before a Government Contract award can be made. https://www.sam.gov/

Please provide: Taxpayer ID Number: _____
CAGE Code (SAM): _____
Point of Contact: _____
Phone & Email: _____

FOR ADDITIONAL INFORMATION, CONTACT:
Eric Gaul - Phone: 309-794-5093 or
Email: eric.j.gaul@usace.army.mil

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER	PAGE 1 OF
	44

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			W912EK27QA006	10 NOV 2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	ERIC GAUL	(309) 794-5093	24 NOV 2026 12:00 PM

9. ISSUED BY	CODE	10. THIS ACQUISITION IS
W07V ENDIST ROCK ISLAND KO CONTRACTING DIVISION, 1 ROCK ISLAND ARSENAL ROCK ISLAND, IL 61299-5001 UNITED STATES ERIC GAUL, EMAIL: ERIC.J.GAUL@USACE.ARMY.MIL TELEPHONE: (309) 794-5093	W912EK	☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 562111 SIZE STANDARD: USD 47,000,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING 14. METHOD OF SOLICITATION
☒ SEE SCHEDULE		☐	☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO	CODE	16. ADMINISTERED BY	CODE
SEE SCHEDULE			

17a. CONTRACTOR/ OFFEROR	CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY	CODE
TELEPHONE NUMBER				

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA	26. TOTAL AWARD AMOUNT *(For Government Use Only)*
SEE SECTION G - CONTRACT ADMINISTRATION DATA	

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: SEE SCHEDULE

30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*	
30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED

Section A - Solicitation/Contract Form

Instrument Name: FY27 Lake Red Rock Refuse Service Contract

Product Service Code : S205

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	FY27 Lake Red Rock Refuse Service Contract 1 March 2027 - 29 February 2028 Product Service Code: S205 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0002	FY27 Lake Red Rock Refuse Service Contract 1 March 2028 - 28 February 2029 Product Service Code: S205 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0003	FY27 Lake Red Rock Refuse Service Contract 1 March 2029 - 28 February 2030 Product Service Code: S205 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 0004	FY27 Lake Red Rock Refuse Service Contract 1 March 2030 - 28 February 2031 Product Service Code: S205	1	Job		

	Pricing Arrangement: Firm Fixed Price				
Option Line Item 0005	FY27 Lake Red Rock Refuse Service Contract 1 March 2031 - 29 February 2032 Product Service Code: S205 Pricing Arrangement: Firm Fixed Price	1	Job		

PERFORMANCE WORK STATEMENT (PWS)
REFUSE PICKUP AND DISPOSAL SERVICES
LAKE RED ROCK PROJECT, IOWA

SECTION	TITLE
C-1	GENERAL INFORMATION
C-2	SUPPLIES PROVIDED
C-3	CONTRACTOR SUPPLIED ITEMS
C-4	PERFORMANCE REQUIREMENTS SUMMARY
C-5	SECURITY
C-6	SUSTAINABILITY
C-7	TECHNICAL CAPABILITY STATEMENT
C-8	USACE PAST PERFORMANCE QUESTIONNAIRE (PPQ)

TECHNICAL EXHIBITS

TE-1	QUALITY ASSURANCE SURVEILLANCE PLAN
TE-2	REFUSE COLLECTION, REMOVAL AND DISPOSAL SPECIFICATIONS

SECTION C-1
GENERAL INFORMATION

C.1.1 BACKGROUND. The U.S. Army Corps of Engineers Lake Red Rock Project is a flood control reservoir in Iowa. A wide variety of recreational facilities are offered, including boat launching ramps, campgrounds, picnic areas and swimming beaches. The Corps of Engineers contracts many routine tasks to the private sector including Waste Management. Maps showing the recreation areas at Lake Red Rock can be found on the internet at: http://www.mvr.usace.army.mil/redrock/maps/default.htm.

C.1.2 SCOPE OF WORK. Work consists of providing refuse collection, removal and disposal services. The contractor will furnish items such as refuse storage containers, labor, supplies, fuel and vehicles necessary to collect, transport and properly dispose of refuse from the U.S. Army Corps of Engineers, Lake Red Rock Project, Marion County, Iowa. Refer to Technical Exhibit #2 for specific container locations, quantity, pick up schedule and frequency of services.

C.1.2.1 REFUSE COLLECTION: Contractor will supply refuse containers according to the cubic yards capacity at the locations specified in Technical Exhibit #2. All containers shall be low-profile containers and must be approved by the Government prior to installation. The Contractor will furnish the vehicles necessary to collect and transport refuse. Vehicles used for pickup and transport shall be equipped with a covered body. The body shall be kept in good repair and shall not be capable of leaking effluent upon roadways or other public areas. The vehicles should be of sufficient size and/or number to enable the Contractor to service all areas under any circumstance. Trucks used for hauling will be regularly cleaned and treated with odor-preventive chemicals. This will be accomplished a minimum of weekly. Vehicles shall not be stored on government lands. The surrounding area will be cleaned, each time, to remove all refuse within a 20-foot radius of the container storage site.

C.1.2.2 DISPOSAL: Contents of the refuse containers will be transported to an approved State facility for disposal. All facility charges shall be borne by the successful bidder.

C.1.2.3 CONTAINERS LOCATIONS: Containers will be placed at a minimum of eleven (11) general locations:

1. Maintenance Compound (1 dumpster area)
2. Maintenance Compound Recycling (1 dumpster area)
3. Howell Station (4 dumpster areas)

4. South Tailwater (1 dumpster area)
5. Marina Cove (1 dumpster area)
6. Wallashuck (2 dumpster areas)
7. Whitebreast (2 dumpster areas)
8. North Overlook (1 dumpster area)
9. North Tailwater (1 dumpster area)
10. Fifield (1 dumpster area)
11. Ivans (1 dumpster area)
12. Roll off (Up to 10 dumpsters, as specified by COR)

C.1.2.4 CONTAINER CONDITION: All containers shall be low-profile containers and be in good condition and maintained to ensure proper lid closure. Containers will be cleaned and treated with odor preventive chemicals as needed not to exceed one time per week. The COR may request that containers be swapped out due to offensive odor or disrepair.

C.1.2 LENGTH OF CONTRACT. Award will be for a base period plus four option periods as follows:

Base Period:	1 March 2027 – 29 February 2028
Option Period I:	1 March 2028 – 28 February 2029
Option Period II:	1 March 2029 – 28 February 2030
Option Period III:	1 March 2030 – 28 February 2031
Option Period IV:	1 March 2031 – 29 February 2032

Contract will not exceed five years. Option periods may or may not be exercised at the discretion of the Government, not the Contractor.

C.1.3 WORK SCHEDULE. Refuse containers shall be emptied according to schedule listed in Technical Exhibit 2.

C.1.4 REQUIRED INSURANCE. In accordance with the FAR Clause 52.228-5 titled "Insurance-Work on a Government Installation" the Contractor shall obtain and maintain during the period of performance under this contract the following kinds and minimum amounts of insurance*:

Workmen's Compensation	*Coverage complying with State Statute***
Employer's Liability	*Minimum $100,000*
General Liability/Bodily Injury	*Minimum $500,000 per occurrence*
Automobile Liability	*Minimum $200,000 per person*
	$500,000 per occurrence

$20,000 property per occurrence

* Reference FAR 28.307-2 Liability, subparagraphs (a), (b) and (c).

** Iowa Insurance Division, telephone 515/281-5705
Iowa Division of Workers Compensation, telephone 800/562-4692

C.1.5 COORDINATION MEETING. As soon as practical after contract award and before start of the services, the Contractor shall meet with the Contracting Officer's Representative (COR). The Contractor shall also be prepared to submit and discuss at this meeting the following items:

C.1.6.1 Insurance Certificate: The Contractor must furnish proof of insurance per section C.1.5;

C.1.6.2 Letter Designating On-the-Job Supervisor(s): The name of the person designated by the Contractor as responsible for inspecting work performed and compliance with contract provisions;

C.1.6.3 Contractor's **Quality Control Plan** and Inspector. The quality control program is in place to assure the requirements of the contract are provided as specified in Section C.1.8;

C.1.6.4 Accident Prevention Plan. All work shall be performed in accordance with the Contractor's Accident Prevention Plan which shall include applicable safety requirements set forth in the current Corps of Engineers Manual EM 385-1-1 "Safety and Health Requirements Manual". A link to the most current version will be provided upon request.

C.1.6.5 Driver's License. Contractor shall show a valid driver's license.

There may also be occasions when subsequent conferences will be called to reconfirm understandings.

No on site work shall be performed until the Contractor Accident Prevention Plan and Certificate of Insurance are submitted and approved.

C.1.6 QUALITY CONTROL PLAN – QCP (CONTRACTOR'S RESPONSIBILITY). The Contractor shall establish a complete quality control program for the performance requirements of this contract and shall provide a written copy of same to the Contracting Officer (CO) and or the Contracting Officer Representative (COR) no later than 30 days after contract award. The Contractor will maintain the QCP throughout the contract performance

period, and, at any time upon verbal or written request, shall provide a copy to the CO and/or COR for review. The QCP shall include an inspection system covering all work tasks stated in the contract to include supplies.

C.1.2.1 PERFORMANCE REQUIREMENTS: Acceptable and unacceptable contract performance will be determined between the COR and the On-Site Supervisor. When the performance is considered to be unsatisfactory, the COR will require the Contractor to explain, in writing, the cause of the discrepancy and corrective action to obtain acceptable levels and preclude any reoccurrence of the problem. The Contractor may not be paid for that portion of performance determined to be unsatisfactory by the CO and/or COR.

C.1.2.2 PAYMENT DEDUCTION: The Contractor's performance will be evaluated and shall not exclude common sense considerations as may be applied by the CO and/or COR. If the performance of the required service is unsatisfactory, and poor performance is clearly the fault of the Contractor, monthly payments to the Contractor may be reduced by the CO as deemed appropriate. Deductions may also be taken by the Government for defective individual services not satisfactorily performed and/or not performed. In the event of continued unsatisfactory performance with documentation, where correction and time to cure has been given, the entire contract may be terminated.

C.1.7 ENVIRONMENTAL CONTROLS.

C.1.8.1 COMPLIANCE WITH LAWS AND REGULATIONS. The Contractor shall be knowledgeable of, and shall comply with, all applicable federal, state, and local laws, environmental requirements and instructions. The Contractor shall ensure policies and procedures are established that protect the health and safety of employees and the community to minimize or eliminate the risk of environmental pollution.

C.1.8.2 HAZARDOUS MATERIALS. The Contractor is responsible for advising their employees of all Environmental and Hazardous Materials Handling.

C.1.8.3 NOTIFICATION OF ENVIRONMENTAL SPILLS. If the Contractor or employee(s) of the Contractor spill or release any substance into the environment, the Contractor shall immediately report the incident to the COR, or in their absence, the Contracting Officer. The Contractor shall be liable for containment and cleanup of hazardous substances

spilled or released into the environmental as a result of their operations.

C.1.8 **CLOSING OF AREAS**: National security, major storm damage, floods, high lake pool levels, other natural causes or major construction activities may result in the partial or total closure of contract recreation areas. During such times, it may be necessary for the Government to suspend the Contractors operations on part or all of a contract area and suspend payment or renegotiate the contract bid price. No services will be performed nor shall any payment be made for periods when the entire area is closed to public use.

SECTION C-2

SUPPLIES PROVIDED

C.2.1 **HARD SURFACE SITES.** A hard surface (rock, asphalt or concrete) will be provided for all containers at all locations.

C.2.2 **STORAGE OF EQUIPMENT AND SUPPLIES.** When storage of Contractor's equipment and supplies is necessary on U.S. Government property, it will be stored in those areas designated by the COR. The Government will assume no responsibility or liability for Contractor equipment or supplies stored on Government property. The Contractor will ensure that all fence gates are locked and secured when his property is stored within such enclosures.

C.2.3 **REMOVAL OF EQUIPMENT AND SUPPLIES.** The Contractor shall remove all containers and any waste materials and rubbish from the Lake Red Rock site upon completion of the contract period. Disposal of rubbish and removal of containers will be done at the Contractor's expense. Final payment will not be made until this operation is complete.

SECTION C-3

CONTRACTOR SUPPLIED ITEMS

C.3.1 **CONTAINERS.** All refuse dumpster containers must be low-profile and of suitable size and type for the intended purpose as specified in Technical Exhibit #2. All containers used under this contract are subject to inspection both prior to contract award and as deemed necessary by the COR during the performance of this contract. Containers not meeting contract requirements shall be removed from Government property and replaced with suitable

containers at no additional cost to the Government. Suitability of containers will be determined by the COR.

C.3.2 **TELEPHONE AND ANSWERING MACHINE.** Contractor shall have a telephone with answering machine, cellular phone with voice mail messaging or other approved message recording service/device. During the performance of refuse removal, the Contractor or an employee designated to act for him shall be available to take calls or return calls within one hour between the hours of 7:30 a.m. and 6:00 p.m.

C.3.3 **VEHICLE(S).** All vehicles shall be properly licensed, insured and maintained in a safe, clean condition. Vehicles used for pickup and transport shall be equipped with a covered body. The body shall be kept in good repair and shall not be capable of leaking effluent upon roadways or other public areas. The vehicles should be of sufficient size and/or number to enable the Contractor to service all areas under any circumstance. Trucks used for hauling will be regularly cleaned and treated with odor preventive chemicals. This will be accomplished a minimum of weekly. Vehicles shall not be stored on government lands.

SECTION C - 4

PERFORMANCE REQUIREMENTS SUMMARY

C.4.1 **REFUSE REMOVAL OBJECTIVES**. The purpose of refuse removal is to achieve complete (95% - 100%) removal of refuse from refuse containers and adjacent areas over the specified period of the contract.

SECTION C-5

SECURITY

MVR AT/OPSEC Language for Lake Red Rock Refuse Collection
Revised 23 OCT 26

General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are

performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as “RAMs”), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

Antiterrorism (AT) Level I training: All contract personnel requiring routine access to Army installations, facilities, and controlled access areas, or requiring network access shall complete initial and annual refresher AT Level I awareness training. Online AT Level I awareness training is available at https://jko.jten.mil/ (website subject to change).

PHYSICAL SECURITY ACCESS CONTROL REQUIREMENTS.

Contract employees may have unescorted access at the above listed recreation areas upon completion of an adjudication of fitness by the USACE Rock Island District Security Office and entry onto an access control list (ACL) for the facility/project. The contractor will submit background checks that have been conducted by a bonded third party within the last six months of the notice to proceed date and authorize reports to be provided to the Rock Island District Security Office by the third party. The mailing address for background checks is:

U.S. Army Corps of Engineer, Rock Island District
ATTN: Security Office
P.O. Box 2004
Rock Island, IL 61204-2004

Background checks will consist of a check of the National Crime Information Center(NCIC) Interstate Identification Index (NCIC-III), and the Terrorist Screening Data Base when available. Individuals may be denied access to Rock Island District controlled facilities and/or property if the results of the third party NCIC-III equivalent background check gives and indication that a person may present a threat to the good order, discipline, safety, or security of the facility. This information includes, but is not limited to a person who has:

(a) The background investigation contains criminal arrest information about the individual that causes the senior commander to determine that the person presents a threat to the good order, discipline, or health and safety on the installation.

(b) A claimed identity that cannot be verified based on the reasonable belief that the person submitted fraudulent identity information in the attempt to gain access.

(c) Current arrest warrant in NCIC, regardless of the offense or violation.

(d) Current bar from entry or access to another Federal installation or facility.

(e) Conviction of crimes encompassing sexual assault, armed robbery, rape, child molestation, production or possession of child pornography, trafficking in humans, or drug possession with intent to sell or distribute.

(f) Conviction for espionage, sabotage, sedition, treason, terrorism, or murder.

(g) Being registered as a sex offender.

(h) Felony conviction within the last 10 years regardless of the offense or violation.

(i) Felony conviction for a firearms or explosives violation regardless of when the conviction occurred.

(j) Engaged in acts or activities designed to overthrow the U.S. Government by force.

(k) Been identified as known to be, or is suspected of being, a terrorist or belonging to an organization with known links to terrorism or support of terrorist activity.

(2) Short term contractor/subcontractor employees working at the USACE facility/project for less than 15 calendar days may be escorted at the USACE facility by a USACE employee or other contract employee that is on the ACL for the facility/project. Names and the dates of work for short term contractor/subcontractors must be submitted to the Rock Island District Security Office at cemvr-sl@usace.army.mil in order to be added to the ACL for the period they will be working at the facility.

In addition to the submitted background checks, supplemental agency checks may be performed at the discretion of the Rock Island District security personnel. The Contractor agrees to cooperate and ensure that Contractor personnel provide any documentation required to complete these checks. Any person lacking proper identification credentials or deemed a security threat may be denied access to the project. Such action in no way relieves the Contractor from performance of the Contract. The Rock Island District retains the right to deny any Contractor and sub-contractor employee from working on a contract awarded by the Rock Island District based on final background investigation results.

Contract employees denied access based upon derogatory information from the NCIC-III or equivalent check may apply to the District Commander for a waiver. In order to obtain a waiver the contract employee must:

a. Obtain a certified copy of their complete criminal history to include all arrests and convictions.

b. Obtain a letter of support from their USACE sponsor. The letter must indicate that the sponsor requests that the person be granted unescorted access to accomplish a specific purpose as well as the anticipated frequency and duration of such visits. If a contractor employee is terminated, the sponsor must inform the District Security Office so that unescorted access is no longer authorized.

c. Submit a letter requesting the access denial be waived to the USACE sponsor who will be responsible for submitting it to the District Commander. The letter must include all offenses, plus an explanation why the conduct should not result in denial of access. Other factors that the sponsor/ the requesting individual should address are the:

(1) Nature and seriousness of the conduct.

(2) Specific circumstances surrounding the conduct.

(3) Length of time elapsed since the conduct.

(4) Age of the person at the time of the incident or conduct, and

(5) Proof of efforts toward rehabilitation.

(6) Current mailing address or email address for Army communications.

d. The USACE sponsor will review the person's information for completeness and determine whether to endorse the request for a waiver.

e. If the USACE sponsor endorses the waiver letter, he/she will provide a letter of recommendation for the person. The letter must address the relevant conduct that caused the denial and indicate why the conduct should not prohibit the person from being granted unescorted access. The USACE sponsor will submit the letters to the District Commander.

f. The District Commander will render a determination in line with good order, discipline, and health and safety of the facility. The District Commander will provide a copy of the determination to the person.

g. The results of the District Commander's decision will be provided to the District Security Office to update the Access Control List for the project.

h. Persons who had a waiver request denied may request reconsideration from the District Commander 1 year after the date of the Commander's decision. Persons may request reconsideration earlier if they can present significant information that was not available at the time of the original request or show that the basis for the original denial was overturned, rescinded, or expired.

In the event that an unexpected change in personnel is required, due to sudden absence of a critical path employee, the Contractor shall immediately contact the Contracting Officer to coordinate obtaining written approval from the Security Office for new/additional personnel to be brought on site prior to background check acceptance. Contractor shall submit *Personnel Change Request Form* and will receive written authorization from the Security Office prior to bringing new personnel on site, and ensure a background check is sent to the Rock Island District Security Office no later than ten days from written notice of approval. The Rock Island District reserves the right to terminate access of the employee upon completion of the Government's review of the background check and the Contractor shall be notified immediately of any such Government decision.

In the event of an unforeseen change in work site conditions which may require a contract modification, and the contractor is required to immediately add personnel, a Personnel Change

Request Form will be submitted to and approved by the Security Office prior to bringing new personnel on site, and ensure a background check is sent to the Rock Island District Security Office no later than ten days from written notice of approval. The Rock Island District reserves the right to terminate access of the employee upon completion of the Government's review of the background check and the Contractor shall be notified immediately of any such Government decision.

Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (https://www.e-verify.gov/) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the contracting file.

****NOTE: To protect the privacy of the Contractor, all Contractor employees, and all sub-contractor employees, background checks, OPSEC SOPs, E-verify, and I-9 forms shall be submitted with a coversheet stating the contract number (e.g. W912EK-15-C-XXXX), title of project, and the company's point of contact information, in a sealed envelope/container and mail:**

Security Office
U.S. Army Corps of Engineers
Rock Island District
1500 Rock Island Drive
Rock Island, IL 6120

Personnel Change Request Form

Contract #_____ Date_____

We, _____, respectfully request to add/replace (circle one) personnel to the jobsite due to the following situation:

_____

_____

_____

_____

_____

_____

_____

_____

_____

Personnel to be conditionally added to the ACL (escorted by):

_____

_____

_____

_____

_____

_____

Background checks (if required for a long term employee) shall be submitted by close of business on (insert proposed date): _____

_____

(Insert signature block)

SECTION C-6

SUSTAINABILITY

Refuse Pickup and Disposal

The contractor shall meet the recycled content requirements set forth by EPA. The link is provided. The list is periodically updated; reviewers should check EPA's website (http://www3.epa.gov/epawaste/conserve/tools/cpg/products/) for updates.

The contractor shall ensure that individual products contain recycled-content for all contractor-furnished supplies.

The contractor shall meet the Bio-Preferred Program requirements set forth by USDA. The

list is periodically updated, so reviewers should check USDA's website (http://www.biopreferred.gov/BioPreferred/faces/pages/ProductCategories.xhtml) for updates.

The contractor shall use bio-based products for equipment maintenance.

The contractor shall assure that all deliverables be printed double sided on paper that contains post-consumer fiber.

The contractor shall us low or no toxic or hazardous chemicals.

The contractor shall use energy efficient equipment. The list is periodically updated, so reviewers should check DOE's website (http://energy.gov/eere/femp/find-product-categories-covered-efficiency-programs) for updates.

SECTION C-7

TECHNICAL CAPABILTY STATEMENT

(OFFERORS MUST COMPLETE)

The Offeror SHALL provide sufficient documentation of their technical capability, such as experience of the company and/or the key personnel and crew who will be performing the work, resumes, equipment lists, etc. or other information to enable the Government to determine the company's capability on projects of similar type, size, scope and complexity.

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

SECTION C-8. USACE PAST PERFORMANCE QUESTIONNAIRE (PPQ)

(OFFERORS MUST COMPLETE)

AGENCY/COMPANY THAT WORK WAS PERFORMED FOR: _____

POINT OF CONTACT & TELEPHONE NUMBER: _____

DATES SERVICES PROVIDED: _____

BRIEF DESCRIPTION OF SERVICES PROVIDED: _____

_____

_____

AGENCY/COMPANY THAT WORK WAS PERFORMED FOR: _____

POINT OF CONTACT & TELEPHONE NUMBER: _____

DATES SERVICES PROVIDED: _____

BRIEF DESCRIPTION OF SERVICES PROVIDED: _____

_____

_____

AGENCY/COMPANY THAT WORK WAS PERFORMED FOR: _____

POINT OF CONTACT & TELEPHONE NUMBER: _____

DATES SERVICES PROVIDED: _____

BRIEF DESCRIPTION OF SERVICES PROVIDED: _____

_____

_____

TECHNICAL EXHIBIT #1

QUALITY ASSURANCE SURVEILLANCE PLAN

T.E.1.1. **Purpose**: This Quality Assurance Surveillance Plan (QASP) is a Government developed and applied document used to make sure that systematic quality assurance methods are used in the administration of the Performance Based Service Contract (PBSC) standards included in this contract. The intent is to ensure that the contractor performs in accordance with performance metrics set forth in the contract documents, that the Government receives the quality of services called for in the contract, and that the Government only pays for the acceptable level of services received.

T.E.1.2. **Critical performance processes and requirements**. Critical to the performance of the contract, the contractor shall provide all personnel equipment, tools, materials, supervision, transportation, other items and services necessary to perform as defined in this Performance Work Statement (PWS). The contractor shall provide accurate transaction processing to ensure that material accountability comply with safety and security requirements, in accordance with this PWS. Additionally, the contractor shall be accountable for all auditable documents, establish/maintain effective quality, and perform required within prescribed timeframes. The performance process is the timely, accurate, and thorough completion of all contract requirements.

T.E.1.3. **Performance Standards**

T.E.1.3.1. Schedule. The dates for services and the actual accomplishment of the services in accordance with the schedule will be assessed against original dates of services and milestones established for the contract.

T.E.1.3.2. Service. The services required to be performed will be assessed against the PWS detailed in the contract, for the required content, quality, timeliness, and accuracy.

T.E.1.3.3. Past Performance. In addition to schedule and services, and cost aspects of performance discussed above, pursuant to FAR 42.15, the Government will assess the contractor's record of conforming to contract requirements and to standards of good workmanship, the contractor's adherence to contract schedules including the administrative aspects of performance, the contractor's history of reasonable and cooperative behavior and commitment to customer satisfaction, and the contractor's business-like concern for the interest of the customer.

T.E.1.4. Surveillance methods. The primary methods of surveillance used to monitor performance of this contract will include but not be limited to: random or planned sampling, periodic inspection, Contractor Self Reporting, and validated customer complaints.

T.E.1.4.1. Random/Scheduled Monitoring**.** Random and/or scheduled monitoring will be conducted if and when deemed necessary by the COR to ensure compliance with the terms of the contract. Using the attached matrix the COR will determine whether the contractor is in compliance with the terms of the contract.

T.E.1.4.2. Contractor Self-Reporting**.** The contractor shall provide as needed status reports that document significant problems/issues and potential resolutions.

T.E.1.4.3. Customer Feedback**.** Customer feedback will be obtained from valid customer complaints. Customer complaints, to be considered valid, must set forth clearly and in writing the detailed nature of the complaint; must be signed and must be forwarded to the COR by the contractor. The contractor shall maintain a log of all customer complaints as well as a copy of each complaint in a documentation file. The COR may request to review the log and/or documentation file at any time.

T.E.5.1. Performance Measurement. Performance will be measured in accordance with the following table:

TECHNICAL EXHIBIT #1 – Continued

QASP MEASUREMENT TABLE

Performance Element	Performance Requirement	Surveillance Method	Frequency	Acceptable Quality Level
Contract Services	Contract Services furnished as prescribed in the PWS as applicable.	Inspection by the COR	Random inspection of all sampling of contract services.	>95% of services inspected performed timely and without rework required.
Overall Contract Performance	Overall contract performance of sufficient quality to earn a Satisfactory (or higher) rating in the COR's annual report on contractor performance	Assessment by the COR	Annual	All service elements rated Satisfactory (or higher) Satisfactory = 95% or above average contract acceptable random sampling

Contractor Self Reporting	Contract Services furnished as prescribed in the PWS as applicable.	Contractor Self Reports	Monthly	>95% of services reported performed timely and without rework required.
Customer Feedback	Customer complaints reviewed by COR	Inspection by the COR	Per Occurrence	100% of valid customer complaints resolved
Invoicing	Monthly invoices per contract procedures are timely and accurate.	Review & acceptance of the invoice by COR	Monthly	100% accuracy

Incentives/Disincentives:

For each item that does not meet acceptable levels, the Government may issue a Contract Discrepancy Report (CDR). CDRs will be forwarded to the Contracting Officer with a copy sent to the contractor. The contractor must reply in writing within 5 days of receipt identifying how future occurrences of the problem will be prevented. Based upon the contractor's past performance and plan to solve the problem, the Contracting Officer will determine if any further action will be taken.

In accordance with the inspection of services provisions of the contract (52.212-4 (a) Inspection/Acceptance), the contractor will provide quality products in a timely manner since the Government can require the contractor, at no additional cost, to replace or correct work that fails to meet contract requirements.

TECHNICAL EXHIBIT #2

Location	Schedule of Services	Refuse Containers Capacity	Refuse Collection Days
Maintenance Compound	March thru February	4 cu. yd.	Mondays
Maintenance Compound – Paper and Cardboard Recycling	March thru February	2 cu. yd. 95-gallon tote	Every other Mondays
Howell Station, South Tailwater, Marina Cove, Wallashuck, Whitebreast, North Overlook	April thru October	74 cu. yd. (22-Howell Station, 6-South Tailwater, 2-Marina Cove, 10-Wallashuck, 18-Whitebreast, 10-North Overlook, 6-North Tailwater)	Monday, Thursdays, & Saturdays
Fifield	April thru September	4 cu. yd.	Mondays
Ivans	April thru October	4 cu. yd.	Mondays & Saturdays
As specified by COR	On-call, as-needed Min 0, Max 10	20 cu. yd. roll-off	On-call, as-needed

Section C - Description/Specifications/Statement of Work

Requirements

Refuse Collection, Removal and Disposal Services

Section E - Inspection and Acceptance

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.246-1	Contractor Inspection Requirements.	1984-04		

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze
Option Line Item 0002	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) DoDAAC: 966107 CountryCode: USA

	ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze
Option Line Item 0003	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze
Option Line Item 0004	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze
Option	Inspection and Acceptance Location

Line Item 0005	Both Destination Instructions: See Performance Work Statement (PWS) DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze

Section F - Deliveries or Performance

0001	**Delivery Schedule** Delivery Period From 01 Mar 2027 to 29 Feb 2028 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze, DELIVER_TO_EMP_ID_NO Email: preston.r.henze@usace.army.mil Telephone: (641) 828-7522 x6430 **Period of Performance** From 01 Mar 2027 To 29 Feb 2028
Option Line Item 0002	**Delivery Schedule** Delivery Period From 01 Mar 2028 to 28 Feb 2029 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES

	Preston Henze, DELIVER_TO_EMP_ID_NO Email: preston.r.henze@usace.army.mil Telephone: (641) 828-7522 x6430 **Period of Performance** From 01 Mar 2028 To 28 Feb 2029
Option Line Item 0003	**Delivery Schedule** Delivery Period From 01 Mar 2029 to 28 Feb 2030 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze, DELIVER_TO_EMP_ID_NO Email: preston.r.henze@usace.army.mil Telephone: (641) 828-7522 x6430 **Period of Performance** From 01 Mar 2029 To 28 Feb 2030
Option	**Delivery Schedule**

Line Item 0004	Delivery Period From 01 Mar 2030 to 28 Feb 2031 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze, DELIVER_TO_EMP_ID_NO Email: preston.r.henze@usace.army.mil Telephone: (641) 828-7522 x6430 **Period of Performance** From 01 Mar 2030 To 28 Feb 2031
Option Line Item 0005	**Delivery Schedule** Delivery Period From 01 Mar 2031 to 29 Feb 2032 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 966107 CountryCode: USA ARMY CORPS OF ENGINEERS CIVIL WORKS RED ROCK DAM AND LAKE RED ROCK, 1105 HIGHWAY T15 KNOXVILLE, IA 50138 UNITED STATES Preston Henze, DELIVER_TO_EMP_ID_NO Email: preston.r.henze@usace.army.mil

	Telephone: (641) 828-7522 x6430 **Period of Performance** From 01 Mar 2031 To 29 Feb 2032

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12		

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

____

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	____
Issue By DoDAAC	____
Admin DoDAAC	____
Inspect By DoDAAC	____
Ship To Code	____

Ship From Code ____
Mark For Code ____
Service Approver (DoDAAC) ____
Service Acceptor (DoDAAC) ____
Accept at Other DoDAAC ____
LPO DoDAAC ____
DCAA Auditor DoDAAC ____
Other DoDAAC(s) ____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

____

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02		
52.223-2	Reporting of Biobased Products	2026-02		

	Under Service and Construction Contracts. (Deviation 2026-O0038)	
52.223-5	Pollution Prevention and Right-to-Know Information.	2024-05
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements. (Deviation 2026-O0038)	2026-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	1984-04
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02

52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.232-7010	Levies on Contract Payments.	2006-12		
252.233-7001	Choice of Law (Overseas).	1997-06		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		

252.243-7001	Pricing of Contract Modifications.	1991-12
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	2023-11
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Alternate I)	2026-02	Alternate I	2026-02

Alternate I (Feb 2026) (Deviation 2026-O0038). When contemplating a time-and-materials or labor-hour contract, substitute the following paragraphs (a), (b), (i), (l), and (m) for those in the basic clause.

(a) The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference. As used in this clause-

Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

(1) Performed by the contractor;

(2) Performed by the subcontractors; or

(3) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

Materials means-

(1) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;

(2) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(3) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);

(4) The following subcontracts for services which are specifically excluded from the hourly rate: ____[Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.]; and

(5) Indirect costs specifically provided for in this clause.

Subcontract means any contract, as defined in FAR 2.101, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) Inspection/Acceptance.

(1) The Government has the right to inspect and test all materials furnished and services performed under this contract at all places and times before acceptance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and

materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (b)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. _____[Insert portion of labor rate attributable to profit.]

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may-

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (b)(4) and (5) of this clause, the Government may, at any time, require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to-

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to

believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(i) Payments.

(1) Work performed. The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) Hourly rate.

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) Materials.

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor-

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall-

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions,

and other amounts that are identifiable to the contract.

(D) Unless listed below, other direct and indirect costs will not be reimbursed.

(1) Other direct costs. The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: ____[Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert 'None'".]

(2) Indirect costs (material handling, subcontract administration, etc.). The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price:____[Insert a fixed amount for the indirect costs and payment schedule. Insert "$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert 'None')."]

(2) Total cost. The total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule. The Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the revised estimate of the total amount of effort to be required under the contract.

(3) Ceiling price. The Government will not be obligated to pay the Contractor any amount in

excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) Access to records. At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost-

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) Overpayments/Underpayments. Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such

reduction within 30 days unless the parties agree otherwise. The Government will pay any such increases within 30 days, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six-month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) The Contracting Officer will issue a final decision if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR part 32 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) Release of claims. The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute

and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work under this contract and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall

not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. Subject to the terms of this contract, the Contractor shall be paid an amount computed under paragraph (i), Payments, of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (b)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

52.217-8	Option to Extend Services.	1999-11

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 60 days.

(End of clause)

52.217-9	Option to Extend the Term of the Contract.	2000-03

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed the length of the contract on the Performance Work Statement (PWS).

(End of clause)

52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

(End of clause)

52.252-2	Clauses Incorporated by Reference.	1998-02

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7007	Limitation of Government's Obligation.	2014-04		

LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

(a) Contract line item(s) ____[Contracting Officer insert after negotiations] is/are incrementally funded. For this/these item(s), the sum of $ ____[Contracting Officer insert after negotiations] of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of

anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	$ ____
(month) (day), (year) ____	$ ____
(month) (day), (year) ____	$ ____
(month) (day), (year) ____	$ ____

(End of clause)

Section K - Representations, Certification, & Other Statements

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation. (Deviation 2026-O0038)	2026-02

Tax on Certain Foreign Procurements-Notice and Representation (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement

payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It [ ] is [ ] is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 [ ] a full exemption, or [ ] partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [X] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation	2026-02		

2026-O0038)

Notice of Price Evaluation preference for HUBZone Small Business Concerns (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) Waiver of evaluation preference. A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

[ ] Offeror chooses to waive the evaluation preference.

(c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.252-1	Solicitation Provisions Incorporated by Reference.	1998-02

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that

must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of provision)

"

REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor	U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director Division of Wage Determinations	Wage Determination No.: 2015-5003 Revision No.: 32 Date Of Last Revision: 8/12/2026

State: Iowa

Area: Iowa Counties of Appanoose, Davis, Mahaska, Marion, Marshall, Monroe, Poweshiek and Wapello

Fringe Benefits Required Follow the Occupational Listing

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.86
01012 - Accounting Clerk II		20.04
01013 - Accounting Clerk III		22.42
01020 - Administrative Assistant		28.47
01035 - Court Reporter		26.18
01041 - Customer Service Representative I		16.03
01042 - Customer Service Representative II		17.49
01043 - Customer Service Representative III		19.62
01051 - Data Entry Operator I		17.73
01052 - Data Entry Operator II		19.35
01060 - Dispatcher, Motor Vehicle		25.00
01070 - Document Preparation Clerk		16.71

01090 - Duplicating Machine Operator	16.71
01111 - General Clerk I	16.62
01112 - General Clerk II	18.14
01113 - General Clerk III	20.35
01120 - Housing Referral Assistant	23.39
01141 - Messenger Courier	16.42
01191 - Order Clerk I	20.83
01192 - Order Clerk II	24.67
01261 - Personnel Assistant (Employment) I	19.46
01262 - Personnel Assistant (Employment) II	21.77
01263 - Personnel Assistant (Employment) III	24.28
01270 - Production Control Clerk	29.33
01290 - Rental Clerk	17.75
01300 - Scheduler, Maintenance	18.76
01311 - Secretary I	18.76
01312 - Secretary II	20.98
01313 - Secretary III	23.39
01320 - Service Order Dispatcher	22.36
01410 - Supply Technician	28.47
01420 - Survey Worker	19.51
01460 - Switchboard Operator/Receptionist	17.47
01531 - Travel Clerk I	16.71
01532 - Travel Clerk II	18.76
01533 - Travel Clerk III	20.98
01611 - Word Processor I	16.77
01612 - Word Processor II	18.82
01613 - Word Processor III	21.06
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	23.23
05010 - Automotive Electrician	22.27
05040 - Automotive Glass Installer	21.21
05070 - Automotive Worker	21.21
05110 - Mobile Equipment Servicer	18.96
05130 - Motor Equipment Metal Mechanic	23.31
05160 - Motor Equipment Metal Worker	21.21
05190 - Motor Vehicle Mechanic	23.31
05220 - Motor Vehicle Mechanic Helper	17.96
05250 - Motor Vehicle Upholstery Worker	20.05
05280 - Motor Vehicle Wrecker	21.21
05310 - Painter, Automotive	22.27
05340 - Radiator Repair Specialist	21.21
05370 - Tire Repairer	18.83
05400 - Transmission Repair Specialist	23.31
07000 - Food Preparation And Service Occupations	
07010 - Baker	18.19
07041 - Cook I	16.28
07042 - Cook II	18.21
07070 - Dishwasher	11.46

07130 - Food Service Worker	13.99
07210 - Meat Cutter	18.13
07260 - Waiter/Waitress	11.15
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	26.58
09040 - Furniture Handler	19.12
09080 - Furniture Refinisher	26.58
09090 - Furniture Refinisher Helper	21.44
09110 - Furniture Repairer, Minor	23.93
09130 - Upholsterer	26.58
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	16.82
11060 - Elevator Operator	18.14
11090 - Gardener	21.63
11122 - Housekeeping Aide	18.14
11150 - Janitor	18.14
11210 - Laborer, Grounds Maintenance	18.28
11240 - Maid or Houseman	14.79
11260 - Pruner	17.17
11270 - Tractor Operator	20.49
11330 - Trail Maintenance Worker	18.28
11360 - Window Cleaner	19.31
12000 - Health Occupations	
12010 - Ambulance Driver	19.74
12011 - Breath Alcohol Technician	26.73
12012 - Certified Occupational Therapist Assistant	33.37
12015 - Certified Physical Therapist Assistant	30.01
12020 - Dental Assistant	21.96
12025 - Dental Hygienist	40.29
12030 - EKG Technician	38.66
12035 - Electroneurodiagnostic Technologist	38.66
12040 - Emergency Medical Technician	19.74
12071 - Licensed Practical Nurse I	23.88
12072 - Licensed Practical Nurse II	26.73
12073 - Licensed Practical Nurse III	29.80
12100 - Medical Assistant	20.00
12130 - Medical Laboratory Technician	29.08
12160 - Medical Record Clerk	20.43
12190 - Medical Record Technician	22.86
12195 - Medical Transcriptionist	23.88
12210 - Nuclear Medicine Technologist	58.73
12221 - Nursing Assistant I	13.54
12222 - Nursing Assistant II	15.22
12223 - Nursing Assistant III	16.61
12224 - Nursing Assistant IV	18.64
12235 - Optical Dispenser	19.99
12236 - Optical Technician	23.88

12250 - Pharmacy Technician		20.82
12280 - Phlebotomist		17.90
12305 - Radiologic Technologist		31.40
12311 - Registered Nurse I		26.72
12312 - Registered Nurse II		32.69
12313 - Registered Nurse II, Specialist		32.69
12314 - Registered Nurse III		39.55
12315 - Registered Nurse III, Anesthetist		39.55
12316 - Registered Nurse IV		47.40
12317 - Scheduler (Drug and Alcohol Testing)		33.12
12320 - Substance Abuse Treatment Counselor		30.22
13000 - Information And Arts Occupations		
13011 - Exhibits Specialist I		17.74
13012 - Exhibits Specialist II		21.98
13013 - Exhibits Specialist III		26.88
13041 - Illustrator I		17.74
13042 - Illustrator II		21.98
13043 - Illustrator III		26.88
13047 - Librarian		24.34
13050 - Library Aide/Clerk		13.37
13054 - Library Information Technology Systems Administrator		21.98
13058 - Library Technician		16.78
13061 - Media Specialist I		15.86
13062 - Media Specialist II		17.74
13063 - Media Specialist III		19.78
13071 - Photographer I		16.97
13072 - Photographer II		19.33
13073 - Photographer III		23.94
13074 - Photographer IV		29.35
13075 - Photographer V		35.43
13090 - Technical Order Library Clerk		16.78
13110 - Video Teleconference Technician		20.28
14000 - Information Technology Occupations		
14041 - Computer Operator I		19.58
14042 - Computer Operator II		21.90
14043 - Computer Operator III		24.42
14044 - Computer Operator IV		27.14
14045 - Computer Operator V		30.05
14071 - Computer Programmer I	(see 1)	23.26
14072 - Computer Programmer II	(see 1)	
14073 - Computer Programmer III	(see 1)	
14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		19.58
14160 - Personal Computer Support Technician		27.14

14170 - System Support Specialist	30.05
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	33.78
15020 - Aircrew Training Devices Instructor (Rated)	40.87
15030 - Air Crew Training Devices Instructor (Pilot)	48.99
15050 - Computer Based Training Specialist / Instructor	33.78
15060 - Educational Technologist	34.35
15070 - Flight Instructor (Pilot)	48.99
15080 - Graphic Artist	23.92
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	48.99
15086 - Maintenance Test Pilot, Rotary Wing	48.99
15088 - Non-Maintenance Test/Co-Pilot	48.99
15090 - Technical Instructor	24.24
15095 - Technical Instructor/Course Developer	29.65
15110 - Test Proctor	19.56
15120 - Tutor	19.56
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	15.88
16030 - Counter Attendant	15.88
16040 - Dry Cleaner	18.17
16070 - Finisher, Flatwork, Machine	15.88
16090 - Presser, Hand	15.88
16110 - Presser, Machine, Drycleaning	15.88
16130 - Presser, Machine, Shirts	15.88
16160 - Presser, Machine, Wearing Apparel, Laundry	15.88
16190 - Sewing Machine Operator	18.94
16220 - Tailor	19.70
16250 - Washer, Machine	16.65
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	27.00
19040 - Tool And Die Maker	31.89
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	23.18
21030 - Material Coordinator	29.33
21040 - Material Expediter	29.33
21050 - Material Handling Laborer	20.85
21071 - Order Filler	17.22
21080 - Production Line Worker (Food Processing)	23.18
21110 - Shipping Packer	23.80
21130 - Shipping/Receiving Clerk	23.80
21140 - Store Worker I	19.76
21150 - Stock Clerk	23.81
21210 - Tools And Parts Attendant	23.18

21410 - Warehouse Specialist	23.18
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	32.73
23019 - Aircraft Logs and Records Technician	26.93
23021 - Aircraft Mechanic I	31.31
23022 - Aircraft Mechanic II	32.73
23023 - Aircraft Mechanic III	34.07
23040 - Aircraft Mechanic Helper	24.12
23050 - Aircraft, Painter	29.91
23060 - Aircraft Servicer	26.93
23070 - Aircraft Survival Flight Equipment Technician	29.91
23080 - Aircraft Worker	28.48
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	28.48
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	31.31
23110 - Appliance Mechanic	29.91
23120 - Bicycle Repairer	25.46
23125 - Cable Splicer	47.78
23130 - Carpenter, Maintenance	24.65
23140 - Carpet Layer	28.48
23160 - Electrician, Maintenance	30.70
23181 - Electronics Technician Maintenance I	29.62
23182 - Electronics Technician Maintenance II	31.11
23183 - Electronics Technician Maintenance III	32.56
23260 - Fabric Worker	26.93
23290 - Fire Alarm System Mechanic	31.31
23310 - Fire Extinguisher Repairer	25.46
23311 - Fuel Distribution System Mechanic	44.14
23312 - Fuel Distribution System Operator	35.89
23370 - General Maintenance Worker	26.13
23380 - Ground Support Equipment Mechanic	31.31
23381 - Ground Support Equipment Servicer	26.93
23382 - Ground Support Equipment Worker	28.48
23391 - Gunsmith I	25.46
23392 - Gunsmith II	28.48
23393 - Gunsmith III	31.31
23410 - Heating, Ventilation And Air-Conditioning Mechanic	29.04
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	30.36
23430 - Heavy Equipment Mechanic	29.98
23440 - Heavy Equipment Operator	28.16
23460 - Instrument Mechanic	31.31
23465 - Laboratory/Shelter Mechanic	29.91
23470 - Laborer	20.85
23510 - Locksmith	29.91
23530 - Machinery Maintenance Mechanic	30.75

23550 - Machinist, Maintenance	28.42
23580 - Maintenance Trades Helper	19.55
23591 - Metrology Technician I	31.31
23592 - Metrology Technician II	32.73
23593 - Metrology Technician III	34.07
23640 - Millwright	30.32
23710 - Office Appliance Repairer	26.65
23760 - Painter, Maintenance	21.91
23790 - Pipefitter, Maintenance	30.34
23810 - Plumber, Maintenance	28.99
23820 - Pneudraulic Systems Mechanic	31.31
23850 - Rigger	31.31
23870 - Scale Mechanic	28.48
23890 - Sheet-Metal Worker, Maintenance	24.22
23910 - Small Engine Mechanic	21.16
23931 - Telecommunications Mechanic I	32.82
23932 - Telecommunications Mechanic II	34.31
23950 - Telephone Lineman	30.97
23960 - Welder, Combination, Maintenance	27.18
23965 - Well Driller	31.31
23970 - Woodcraft Worker	31.31
23980 - Woodworker	25.46
24000 - Personal Needs Occupations	
24550 - Case Manager	19.47
24570 - Child Care Attendant	13.15
24580 - Child Care Center Clerk	16.39
24610 - Chore Aide	17.26
24620 - Family Readiness And Support Services Coordinator	19.47
24630 - Homemaker	19.47
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	34.17
25040 - Sewage Plant Operator	29.08
25070 - Stationary Engineer	34.17
25190 - Ventilation Equipment Tender	26.33
25210 - Water Treatment Plant Operator	29.08
27000 - Protective Service Occupations	
27004 - Alarm Monitor	25.80
27007 - Baggage Inspector	18.00
27008 - Corrections Officer	26.91
27010 - Court Security Officer	26.24
27030 - Detection Dog Handler	20.14
27040 - Detention Officer	26.91
27070 - Firefighter	26.62
27101 - Guard I	18.00
27102 - Guard II	20.14
27131 - Police Officer I	28.28

27132 - Police Officer II		31.43
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator		15.29
28042 - Carnival Equipment Repairer		16.14
28043 - Carnival Worker		12.82
28210 - Gate Attendant/Gate Tender		19.33
28310 - Lifeguard		11.39
28350 - Park Attendant (Aide)		21.62
28510 - Recreation Aide/Health Facility Attendant		15.77
28515 - Recreation Specialist		26.77
28630 - Sports Official		17.22
28690 - Swimming Pool Operator		18.05
29000 - Stevedoring/Longshoremen Occupational Services		
29010 - Blocker And Bracer		33.22
29020 - Hatch Tender		33.22
29030 - Line Handler		33.22
29041 - Stevedore I		31.42
29042 - Stevedore II		34.88
30000 - Technical Occupations		
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2)	47.28
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2)	32.60
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2)	35.90
30021 - Archeological Technician I		19.55
30022 - Archeological Technician II		21.87
30023 - Archeological Technician III		27.09
30030 - Cartographic Technician		27.09
30040 - Civil Engineering Technician		31.23
30051 - Cryogenic Technician I		30.00
30052 - Cryogenic Technician II		33.13
30061 - Drafter/CAD Operator I		19.55
30062 - Drafter/CAD Operator II		21.87
30063 - Drafter/CAD Operator III		24.37
30064 - Drafter/CAD Operator IV		30.00
30081 - Engineering Technician I		17.73
30082 - Engineering Technician II		19.89
30083 - Engineering Technician III		22.25
30084 - Engineering Technician IV		27.57
30085 - Engineering Technician V		33.73
30086 - Engineering Technician VI		40.80
30090 - Environmental Technician		25.48
30095 - Evidence Control Specialist		27.09
30210 - Laboratory Technician		25.97
30221 - Latent Fingerprint Technician I		30.00
30222 - Latent Fingerprint Technician II		33.13

30240 - Mathematical Technician		27.09
30361 - Paralegal/Legal Assistant I		23.48
30362 - Paralegal/Legal Assistant II		29.09
30363 - Paralegal/Legal Assistant III		35.58
30364 - Paralegal/Legal Assistant IV		43.06
30375 - Petroleum Supply Specialist		33.13
30390 - Photo-Optics Technician		27.09
30395 - Radiation Control Technician		33.13
30461 - Technical Writer I		28.82
30462 - Technical Writer II		35.25
30463 - Technical Writer III		42.65
30491 - Unexploded Ordnance (UXO) Technician I		30.05
30492 - Unexploded Ordnance (UXO) Technician II		36.35
30493 - Unexploded Ordnance (UXO) Technician III		43.57
30494 - Unexploded (UXO) Safety Escort		30.05
30495 - Unexploded (UXO) Sweep Personnel		30.05
30501 - Weather Forecaster I		30.00
30502 - Weather Forecaster II		36.49
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2)	24.37
30621 - Weather Observer, Senior	(see 2)	27.09
31000 - Transportation/Mobile Equipment Operation Occupations		
31010 - Airplane Pilot		36.35
31020 - Bus Aide		15.85
31030 - Bus Driver		19.76
31043 - Driver Courier		17.73
31260 - Parking and Lot Attendant		13.99
31290 - Shuttle Bus Driver		16.96
31310 - Taxi Driver		13.59
31361 - Truckdriver, Light		18.71
31362 - Truckdriver, Medium		19.79
31363 - Truckdriver, Heavy		26.66
31364 - Truckdriver, Tractor-Trailer		26.66
99000 - Miscellaneous Occupations		
99020 - Cabin Safety Specialist		17.72
99030 - Cashier		13.41
99050 - Desk Clerk		14.65
99095 - Embalmer		34.74
99130 - Flight Follower		30.05
99251 - Laboratory Animal Caretaker I		16.26
99252 - Laboratory Animal Caretaker II		17.16
99260 - Marketing Analyst		31.25
99310 - Mortician		34.74
99410 - Pest Controller		20.22
99510 - Photofinishing Worker		15.79
99710 - Recycling Laborer		24.57
99711 - Recycling Specialist		27.54
99730 - Refuse Collector		23.08

99810 - Sales Clerk	14.70
99820 - School Crossing Guard	21.10
99830 - Survey Party Chief	33.58
99831 - Surveying Aide	17.99
99832 - Surveying Technician	25.39
99840 - Vending Machine Attendant	18.72
99841 - Vending Machine Repairer	21.99
99842 - Vending Machine Repairer Helper	18.72

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract from May 11, 2026, through December 31, 2026. The applicable Executive Order minimum wage rate will be adjusted annually.
Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: $5.92 per hour, up to 40 hours per week, or $236.80 per week or $1,026.13 per month

HEALTH & WELFARE EO 13706: $5.42 per hour, up to 40 hours per week, or $216.80 per week, or $939.46 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any

paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor; 3 weeks after 5 years, 4 weeks after 15 years, and 5 weeks after 20

years.
  Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of thirteen paid holidays per year: New Year's Day, Martin Luther King Jr's Birthday, Washington's Birthday, Good Friday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, the Day before Christmas, and Christmas Day. (A contractor may substitute for any of the named holidays another day of with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least $27.63 per hour (or at least $684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage

determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt

employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

    (1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

    (2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

    (3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

    (4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance

Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am.

If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage

determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of $3.35 per week (or $.67 cents per day). However, in those instances where the uniforms furnished are made of """"wash and wear"""" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial

laundering in order to meet the cleanliness or appearance standards set by the terms

of the Government contract, by the contractor, by law, or by the nature of the work,

there is no requirement that employees be reimbursed for uniform maintenance costs.

** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS **

The duties of employees under job titles listed are those described in the """"Service Contract Act Directory of Occupations"""", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) **

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR

4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act

and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are

included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).

2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized

representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees

performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report

of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See

29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the """"Service Contract Act Directory of Occupations"""" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."""